

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 04/03/2026

ALL APPEARANCES WILL BE BY ZOOM.

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SPECIFY THE ISSUES to be argued.

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Zoom hearing information

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01571
CASE NAME: JANE DOE VS. CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Contra Costa Ballet Centre's ("Defendant" or "Ballet Centre") Demurrer to Plaintiff's First Amended Complaint.

Procedural Background

Plaintiff filed her First Amended Complaint ("FAC") on August 29, 2025, following the Court's granting of Ballet Centre's motion for judgment on the pleadings with leave to amend. Ballet Centre filed its demurrer on October 29, 2025. Ballet Centre demurred to four of the seven causes of action asserted

against it: (1st CoA): intentional infliction of emotional distress; (5th CoA): negligent failure to warn, train, or educate; (6th CoA): constructive fraud; and (7th CoA): sexual harassment under Civil Code § 51.9.

The hearing was originally scheduled for February 20, 2026. The Court continued the hearing until April 3, 2026, and ordered the parties to meet and confer as required by the Code of Civil Procedure. On March 11, Ballet Centre's counsel filed a declaration indicating the parties met and conferred and that Plaintiff agreed to withdraw her 5th and 6th causes of action, for negligent failure to warn, train, or educate, and constructive fraud, respectively.

Based on the above, the parties request that the Court rule on the demurrer only as to the intentional infliction of emotional distress and sexual harassment causes of action. The Court will limit its review to those two claims.

Factual Allegations

At all relevant times, non-moving Defendant Viktor Kabaniaev was a dance instructor and teacher employed by moving Defendant Ballet Centre. (¶¶ 5, 15.) Plaintiff was a student enrolled at the Ballet Centre and was instructed and taught by Defendant Kabaniaev. (¶ 15.) Between the years of 2000 and 2004, while Plaintiff was between twelve and sixteen years old, Defendant Kabaniaev sexually assaulted and abused Plaintiff while working for Defendant. (¶¶ 30, 32.) This abuse occurred at Ballet Centre's facilities as well as other locations including other dance studios in the area. (¶ 32 a.)

It is generally alleged, on information and belief, that Defendant knew or had reason to know that Kabaniaev had engaged in unlawful sexually related conduct in the past, and that there was a probability that he would assault minors with whom he came into contact. (¶¶ 18-19.) Defendant failed to implement reasonable safeguards to protect Plaintiff and others from Kabaniaev's conduct and failed to warn Plaintiff and others of his past unlawful behavior. (¶¶ 20-22.) It is alleged that Defendant Ballet Centre allowed Kabaniaev to be alone in secluded environments with Plaintiff, allowed him to remain in his position when they had reason to know he sexually abused minors previously, and failed to investigate complaints. (¶ 24.)

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A

demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP § 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Timeliness

Plaintiff initially argues that the demurrer should be overruled as being untimely. She contends that Defendant's response to the FAC was due on or before September 29, 2025 – thirty days after the filing of the FAC. She asserts that Defendant "did not file the required declaration [form CIV-141] to extend its deadline" an additional 30-days under Code of Civil Procedure § 430.41, so the filing of the demurrer on October 29, 2025, makes it untimely.

Initially, Plaintiff's assertion that Defendant did not file the declaration implementing the automatic 30-day extension is factually inaccurate. The Court's docket shows that Defendant filed form CIV-141 on September 29, 2025. As such, the demurrer is timely.

Even if the demurrer were considered untimely, "the trial court [has] discretion to consider defendant's untimely demurrer." (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749.) Alternatively, the Court can exercise its discretion to treat the demurrer like a motion for judgment on the pleadings – which has the same standard as a demurrer. (*Marzec v. Public Employees' Retirement System* (2015) 236 Cal.App.4th 889, 900 ["Because a motion for judgment on the pleadings is the functional equivalent of a general demurrer, the same rules apply."] citation omitted.) If the demurrer were untimely the Court would exercise its discretion given that Plaintiff filed a substantive opposition thereto.

Intentional Infliction of Emotional Distress

"The elements of the tort of intentional infliction of emotional distress are: '(1) Extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.'" (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 *quoting Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.)

"A defendant's conduct is 'outrageous' when it is so "extreme as to exceed all bounds of that usually tolerated in a civilized community." [Citation.] And the defendant's conduct must be "intended to inflict injury or engaged in with the realization that injury will result." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

"In order to avoid a demurrer, the plaintiff must allege with 'great[] specificity' the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832 *quoting Schlauch v. Hartford Accident & Indemnity Co.* (1983) 146 Cal.App.3d 926, 936.)

Plaintiff generally alleges, on information and belief, that Ballet Centre knew that Kabaniaev had engaged in unlawful sexually related conduct in the past, including acts against children, and that it knew of the probability that he would assault minors with whom he came into contact. She generally

alleges that Ballet Centre failed to implement proper safeguards to protect her and others from Kabaniaev. With this knowledge, Ballet Centre allowed Kabaniaev unsupervised access and control over the students in separate and secluded areas. This included providing unfettered access to Ballet Centre's facilities by providing him with keys.

The actions of Ballet Centre which form the basis of this claim are all general allegations not specifically directed toward Plaintiff. "It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) There are no allegations that any of Defendant's alleged actions were directed toward Plaintiff in particular, or that any of Defendant's employees or agents witnessed any of the alleged misconduct. Nor are there any allegations that Plaintiff ever informed anyone at Ballet Centre about, nor that anyone at Ballet Centre was aware of, Kabaniaev's actions.

General allegations that Defendant 'should have known' that Kabaniaev was a potential danger to children (e.g. ¶¶ 58, 72-73, 85) are insufficient to support an intentional infliction claim. As such, Defendant's demurrer to the intentional infliction of emotional distress cause of action is **sustained**.

Sexual Harassment (Civil Code § 51.9)

Defendant first argues that Civil Code § 51.9 does not apply to it because it is an entity and the statute applies to a 'person.' The Court notes that Defendant raised this exact same argument in its MJOP to the original complaint (compare MJOP at 11:16-13:6 with Demurrer at 10:14-11:13) and the Court recognized that the Court of Appeal in *C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094 held that this "contention has no merit," and explicitly held that "a corporation may be civilly liable for violating § 51.9." (*Id.* at 1106-07.) (See Court's order in this lawsuit re MJOP filed August 15, 2025 for full discussion.)

The Court find it is professionally and ethically inappropriate for counsel repeatedly to raise an argument which has already been addressed by the Court in the same lawsuit. An "attorney is an officer of the court and owes the court a duty of candor." (*Levine v. Berschneider* (2020) 56 Cal.App.5th 916, 921 citations omitted.) "This means that, 'A lawyer shall not ... knowingly make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer.'" (*Ibid.* quoting Cal. R. Prof. Conduct, rule 3.3 (a)(1).) "In a similar vein, § 6068 of the Business and Professions Code explains that every attorney has a duty 'never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law.'" (*Ibid.*)

The Court has already indicated by a prior ruling in this lawsuit that this issue has been decided by the Court of Appeal. That decision is mandatory authority for this court. *Auto Equity Sales, Inc., v. Superior Court* (1962) 57 Cal.2d 450. Defendant does not cite any new or contradictory facts, reasoning or authority for its unsupported position. The Court expects defense counsel to present arguments to the Court only when it has a reasonable basis for making such arguments. Repeating an argument that the Court has already ruled upon and denied – without any additional, new, or contrary facts, reasoning or authority is improper.

Defendant was or should have been well aware of the *C.R. v. Tenet Healthcare Corp.* (2009) 169

Cal.App.4th 1094 decision. Not only was it cited on August 15, 2025 in the Court's previous ruling on Defendant's MJOP, Plaintiff cited the decision in the FAC at ¶ 129.

Vicarious Liability

For the corporation to be liable for the actions of its employees, the plaintiff must show some sort of vicarious liability to support such a claim. (See e.g. *C.R.*, supra, 169 Cal.App.4th at 1110-1111.) This is typically shown "under a respondeat superior theory." (*C.R.* 169 Cal.App.4th at 1110.) It may also be shown via a ratification theory. The Court will address both arguments below.

Ratification

"An employer may be liable for an employee's willful and malicious actions under principles of ratification." (*Delfino v. Agilent Tech., Inc.* (2006) 145 Cal.App.4th 790, 810.) "An employee's actions may be ratified after the fact by the employer's voluntary election to adopt the employee's conduct by, in essence, treating the conduct as its own." (*Ibid.*) "The failure to discharge an employee after knowledge of his or her wrongful acts may be evidence supporting ratification." (*Ibid.*; see also, *Ortiz v. Pacific* (E.D. Cal. 2013) 973 F.Supp.2d 1162, 1186.)

For the corporation to have ratified the conduct, the act in question must be "done with the knowledge or under the direction of corporate officials having power to bind the corporation." (*J.R. Norton Co. v. General Teamsters, Warehousemen & Helpers Union, Local 890* (1989) 208 Cal.App.3d 430, 445 citing *Toole v. Richardson-Merrell Inc.* (1967) 251 Cal.App.2d 689, 711-12.)

Plaintiff argues that ratification can apply "where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery..." (Opp. at 13:12-15 quoting *C.R. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110.) "Ratification may occur when an employer learns of misconduct and fails to discharge an agent." (Opp. at 3:15-16.)

Plaintiff contends that it has alleged that Defendant "had knowledge that Kabaniaev had engaged in unlawfully sexually-related conduct with students in the past and that he had dangerous propensities to sexually abuse vulnerable ballet students," but they failed to act, citing paragraphs 18, 26, 99, 112-114, and 116. (Opp. at 14:6-10.) The FAC, however, does not allege that Defendant had actual knowledge of any such incidents. For example, paragraph 18 alleges that Plaintiff "is informed and believes, and on that basis alleges, that Defendants knew or had reason to know that Defendant KABANIAEV had engaged in unlawful sexually-related conduct in the past and/or was continuing to engage in such conduct." The other paragraphs referenced generally allege that Defendants failed to disclose 'prior and/or known misconduct' by Kabaniaev but fail to identify what that prior misconduct allegedly was or how Defendants became aware of it.

"A '[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true' [cite], and thus a pleading made on information and belief is insufficient if it 'merely assert[s] the facts so alleged without alleging such information that '[l]ead[s] [the plaintiff] to believe that the allegations are true.'" (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59 quoting *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550-51.) Plaintiff has not alleged any facts that indicate the basis for this belief.

There are no allegations that Ballet Centre was aware of any of Kabaniaev's conduct toward Plaintiff during the relevant time. There are no allegations that Plaintiff or her parents reported any of the incidents to Ballet Centre. Nor are there any allegations that Ballet Centre was aware of any misconduct by Kabaniaev against Plaintiff during the relevant times. More specifically, there are no allegations that any "corporate officials having power to bind the corporation" had any knowledge of Kabaniaev's actions.

While it may be true that failure to discipline an employee for even intentional and possibly criminal acts may amount to ratification, there need to be allegations that Defendant employees with authority to bind the corporation knew of the improper actions for a ratification to have occurred. No such allegations are included in the Complaint. As such, Plaintiff has failed to properly allege ratification.

Respondeat Superior

"Typically, a corporation may be liable for employee misconduct under a respondeat superior theory." (*C.R.*, supra, 169 Cal.App.4th at 1110.) In its demurrer, Defendant cites cases indicating that an entity cannot be held vicariously liable for the sexual torts of its employees under such a theory as such actions are well outside the scope of an employee's normal work duties. (Demurrer at 11:14-19.)

Plaintiff counters by arguing that courts, including the California Supreme Court, have held that tortious conduct "that violates an employee's official duties or disregards the employer's express orders may nonetheless be within the scope of employment," in certain situations. (See e.g. *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 209.) "With respect to sexual misconduct by an employee, the California Supreme Court has not declared, as [Defendant] would have it, that such acts always bar vicarious liability on the part of the employer." (*Doe v. Uber Technologies, Inc.* (2016) 184 F.Supp.3d 774, 784 citations omitted.)

"Whether an employee committed a tort during the course and scope of his employment depends on whether the act performed was required or incident to his duties or whether his conduct could be reasonably foreseen by the employer in any event." (*Avila v. Standard Oil Co.* (1985) 167 Cal.App.3d 441, 447.) "[Where] the facts of the case make it arguable whether the employee has acted within the scope of his employment, then the scope of employment issue is one properly decided by the trier of fact." (*Ibid.* quoting *Alma W. v. Oakland Unified School Dist.* (1981) 123 Cal.App.3d 133, 138.)

The FAC alleges that the offending conduct of Defendant Kabaniaev occurred while he was performing his function as a ballet instructor. For example, it alleged that he groped "Plaintiff's breasts and vagina under the guise of fixing Plaintiff's posture." (¶ 33 a.) He would also "use the guise of care, dance training, teaching and coaching to normalize intimate, inappropriate, and sexually abusive interactions with Plaintiff." (¶ 30.)

In Reply, the Ballet Centre does not address the above argument or authority cited by Plaintiff. Instead, it argues that § 51.9 does not apply to it.

Applicability of Code to Ballet Centre

Defendant argues that Civil Code § 51.9 does not apply to entities such as a private ballet school. (Reply at 6:16-20.) It contends that the statute "creates a limited cause of action in specifically

enumerated professional relationships ... who exploit that authority to engage in sexual harassment.” (Reply at 6:22-24.)

Civil Code § 51.9 states that it applies when there is a “business, service, or professional relationship between the plaintiff and defendant” (Civ. Code § 51.9 (a)(1).) “Such a relationship may exist between a plaintiff and a person, including, but not limited to, any of the following persons: ... (E) Teacher. ... (I) A relationship that is substantially similar to any of the above.” (*Id.* at (a)(1)(E), (I).) The term “Teacher” is not defined in the statute.

The FAC alleges that Defendant Kabaniaev was Plaintiff’s “instructor and dance teacher,” and that he was employed by Ballet Centre “as a dance teacher, mentor and advisor...” (e.g. ¶¶ 1, 5, 15.) Ballet Centre does not explain why the statute would not apply under the above allegations. It appears to argue that section 51.9 does not apply because it is a “private ballet school,” but without explanation as to why a “teacher” at such a school would not fall under the statutory language. Even if, strictly speaking, Defendant Kabaniaev would not qualify as a teacher, Civil Code § 51.9 also applies to a “relationship that is substantially similar” to a teacher. Holding a position of authority and being responsible for instructing children in a given field is ‘substantially similar’ enough to a ‘teacher’ to qualify under the statute. The Ballet Centre has not provided any legal authority to hold otherwise.

Based on the above, the Court finds that the FAC presents “a close enough call that the Court finds no reason to deviate from the ordinary rule that ‘the determination whether an employee has acted within the scope of employment presents a question of fact’” (*Doe*, supra, 184 F.Supp.3d at 786 quoting *Mary M.* 54 Cal.3d at 213.) As such, Defendant’s demurrer to the Civil Code § 51.9 cause of action is **overruled**.

The Court notes that Defendant’s arguments regarding the conspiracy or aiding and abetting liability under Civil Code § 52 are not well taken as Plaintiff does not assert conspiracy or aiding/abetting liability. Instead, the FAC alleges direct violation of § 51.9.

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

“The plaintiff bears the burden of proving there is a reasonable possibility of amendment. [¶] To satisfy that burden ... a plaintiff ‘must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.’ The assertion of an abstract right to amend does not satisfy this burden. The plaintiff must clearly and specifically set forth the ‘applicable substantive law’ and the legal basis for amendment, i.e., the elements of the cause of action and authority for it. Further, the plaintiff must set forth factual allegations that sufficiently state all required elements of that cause of action. Allegations must be factual and specific, not vague or conclusory.” (*PGA West Residential Assn. v. Hulven International, Inc.* (2017) 14 Cal.App.5th 156, 189 quoting *Rossberg v. Bank of America, N.A.* (2013) 219 Cal.App.4th 1481, 1491 internal citations omitted.)

Plaintiff has already been granted leave to amend relating to the intentional infliction of emotional

distress cause of action. In her opposition, she states that if the Court sustains Defendant's demurrer that she "respectfully requests that the court allow leave to amend." (Opp. at 15:15-16.) Plaintiff provides no details on how she would amend to properly assert such a cause of action.

A trial court does not abuse its discretion in denying leave to amend when the moving party "merely stated in its opposition to [the] demurrer [or motion to strike] that 'if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....'" (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.) Leave to amend is **denied**.

Conclusion

Defendant Ballet Centre's Demurrer is **sustained** as to the first cause of action for intentional infliction of emotional distress. Leave to amend is **denied**.

The Demurrer is **overruled** as to the seventh cause of action for sexual harassment under Civil Code § 51.9.

2. 9:00 AM CASE NUMBER: C22-01571
CASE NAME: JANE DOE VS. CONTRA COSTA BALLET CENTRE, AN ENTITY OF UNKNOWN TYPE
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Contra Costa Ballet Centre's Motion to Strike Plaintiff's Claims for Punitive Damages, Treble Damages, and Attorney's Fees.

Factual Allegations

See Line 1.

Procedural Background

Plaintiff filed her First Amended Complaint ("FAC") on August 29, 2025, following the Court's granting of Ballet Centre's motion for judgment on the pleadings with leave to amend. Ballet Centre filed its demurrer on October 29, 2025. Ballet Centre demurred to four of the seven causes of action asserted against it: (1st CoA): intentional infliction of emotional distress; (5th CoA): negligent failure to warn, train, or educate; (6th CoA): constructive fraud; and (7th CoA): sexual harassment under Civil Code § 51.9.

The hearing was originally scheduled for February 20, 2026. The Court continued the hearing until April 3, 2026, and ordered the parties to meet and confer as required by the Code of Civil Procedure. On March 11, Ballet Centre's counsel filed a declaration indicating the parties met and conferred and that Plaintiff agreed to withdraw her "claim for treble damages, but will continue to assert her claims for punitive damages and attorneys' fees," and that the Court should move forward with addressing those issues. (Oliver Decl. ¶ 7.)

Based on the above, the Court will limit its review to those two claims.